

CONSTITUTION FOR THE STUDENT GOVERNMENT ASSOCIATION OF WESTERN KENTUCKY UNIVERSITY

As amended Spring 2002 Semester

We, the students of Western Kentucky University, in order to form a union in which student needs, interests, and opinions may be addressed, do hereby ordain and establish this Constitution of the Student Government Association of Western Kentucky University.

1 THE STUDENT GOVERNMENT ASSOCIATION

- 1.1 All enrolled students at Western Kentucky University are considered members of the Student Government Association, and have the right to vote in all elections of the Student Government Association.
- 1.2 The Student Government Association shall consist of three branches: the legislative branch, hereafter referred to as Congress; the executive branch; and the judicial branch, hereafter referred to as the Judicial Council.
- 1.3 The right for any student to be present at any meeting of any branch of student government shall not be restricted.
- 1.4 The right to view all records of any branch of student government shall not be restricted.
- 1.5 Non-Discrimination Clause
 - 1.5.1 The Student Government Association shall abide by Western Kentucky University's Non-Discrimination Clause.

2 THE EXECUTIVE BRANCH

- 2.1 There shall be a President, Executive Vice President, Vice President of Finance, Vice President of Public Relations, and Vice President of Administration.
- 2.2 To qualify as a candidate for an executive office, a person must meet the following requirements:
 - 2.2.1 Have a grade point average of no less than 2.5 cumulative.
 - 2.2.2 Have accumulated a minimum of thirty (30) hours at Western Kentucky University at the time of candidacy, and must be a full-time student at the time of candidacy.
 - 2.2.3 Be in good standing with the University.
 - 2.2.4 Be enrolled as a full-time student during the term of office and shall not be a member of the faculty or staff.
 - 2.2.5 All Executive Cabinet members shall have completed one year of membership as a member of Congress in the Student Government Association, or may be granted an exemption by Judicial Council.
 - 2.2.6 The Vice President of Finance shall have completed at least three (3) hours of accounting upon taking office.
- 2.3 Duties of the President. The President shall:
 - 2.3.1 Take office at least two (2) weeks prior to the end of the academic year and assume all duties of the office of President; the position of Student Regent shall be assumed on June 30.

- 2.3.2 Serve as the chief executive of the Student Government Association.
 - 2.3.3 Be the official representative of the student body.
 - 2.3.4 Enforce the provisions of this Constitution, the Bylaws, and any enactments of the Student Government Association.
 - 2.3.5 Report to Congress weekly.
 - 2.3.6 Establish special committees within Congress as needed with the approval of a majority of Congress.
 - 2.3.7 Make Judicial Council appointments with the approval of a two-thirds (2/3) vote of Congress.
 - 2.3.8 Make Academic Council appointments with the approval of two-thirds (2/3) vote of Congress.
 - 2.3.9 Make committee chair appointments with the approval of a majority vote of Congress.
 - 2.3.10 Submit appointees to University committees where student representation is requested by the University with approval by a majority vote at the next Congressional meeting.
 - 2.3.11 Appoint a member of Congress to represent the student body at Bowling Green City Commission meetings.
 - 2.3.12 Administer the oath of office to the officers and member of Congress in the absence of the Chief Justice of the Judicial Council.
 - 2.3.13 Make executive decisions when Congress is not in session.
 - 2.3.14 Establish and post set office hours of a minimum of twelve (12) per week during regular business hours.
- 2.4 The Duties of the Executive Vice President. The Executive Vice President shall:
- 2.4.1 Assume all duties of the President in the absence of the President, except those of Student Regent.
 - 2.4.2 Preside over all Congress meetings, or appoint a member of Congress to preside in the case of absence.
 - 2.4.3 Call special meetings of Congress provided twenty-four (24) hours notification is given.
 - 2.4.4 Be responsible for coordinating with Judicial Council all campus-wide elections.
 - 2.4.5 Establish special committees within Congress as needed with the approval of a majority vote of Congress.
 - 2.4.6 Establish and post set office hours of a minimum of twelve (12) per week during regular business hours.
 - 2.4.7 Be a voting member of Congress in the event of a tie.
 - 2.4.8 Be a voting member of the Executive Cabinet.
- 2.5 The Duties of the Vice President of Finance. The Vice President of Finance shall:
- 2.5.1 Supervise and be responsible for the financial affairs of the Student Government Association.
 - 2.5.2 Make complete and detailed financial reports to Congress and executive officers at the beginning and end of each semester, as well as weekly reports of the financial status of the Student Government Association.
 - 2.5.3 Expend funds as authorized by Congress.
 - 2.5.4 Keep a complete record of all financial transactions.
 - 2.5.5 Work with the President and Executive Vice President in establishing and presenting a full, detailed budget to the Congress by the first meeting. The budget shall be in the hands of Congress for at least seven (7) days before it is voted upon.

- 2.5.6 Submit financial records for an official audit.
 - 2.5.7 Perform other duties as designated by Congress in the area of financial affairs.
 - 2.5.8 Establish and post set office hours of a minimum of ten (10) per week during regular business hours.
 - 2.5.9 Be a voting member of the Executive Cabinet.
- 2.6 Duties of the Vice President of Public Relations. The Vice President of Public Relations shall:
- 2.6.1 Provide publicity for all Student Government Association meetings, activities and programs.
 - 2.6.2 Maintain all communication channels with the media.
 - 2.6.3 Advertise to the entire student body filing dates, campaign requirements, and elections procedures at least two (2) weeks before filing begins.
 - 2.6.4 Assist all committees of the Student Government Association concerning public relations.
 - 2.6.5 Be advisor to the Public Relations Committee.
 - 2.6.6 Coordinate all campus activities relating to the Student Government Association.
 - 2.6.7 Establish and post set office hours of a minimum of ten (10) per week during regular business hours.
 - 2.6.8 Be a voting member of the Executive Cabinet.
- 2.7 Duties of the Vice President of Administration. The Vice President of Administration shall:
- 2.7.1 Record minutes and take roll of the Student Government Association Congress and Executive Cabinet meetings.
 - 2.7.2 Notify the Judicial Council of excessive absences on the part of Congress and/or committee members, and be responsible for notifying members in question of the pending judicial review within the time frame of two (2) Congress meetings.
 - 2.7.3 Shall keep an accurate record of all Congress members' qualifications.
 - 2.7.4 Distribute the Constitution and Bylaws at the first meeting of Congress.
 - 2.7.5 Maintain appropriate files of all Student Government Association business; maintain records of all past and current legislation recording passage or failure; and make such business available to University archives.
 - 2.7.6 Supervise and manage the student secretaries.
 - 2.7.7 Establish and post set office hours of a minimum of eight (8) per week during regular business hours.
 - 2.7.8 Be a voting member of the Executive Cabinet.
- 2.8 Executive Cabinet. There shall be an Executive Cabinet which shall consist of the President, Executive Vice President, Vice President of Finance, Vice President of Public Relations, and Vice President of Administration. The Executive Cabinet shall:
- 2.8.1 Carry out the policies and directives established by Congress in accordance with this Constitution.
 - 2.8.2 Make proposals on matters of policy and recommend plans of action for consideration by Congress.
 - 2.8.3 Perform any other duties which may be designated by Congress.
 - 2.8.4 Be present in order for the President to veto or approve legislation.
 - 2.8.5 Have veto power over all legislation passed by Congress with each officer having one vote. A successful veto requires a majority vote of the Executive Cabinet. The

sponsoring committee of the vetoed legislation must be given a written explanation within forty-eight (48) hours as to why that legislation was vetoed. The President shall present reasons for the veto at the next regular meeting of Congress. If legislation is not vetoed, the Vice President of Administration will stamp it approved.

2.9 Vacancies

- 2.9.1 In the event that the President is unable to fulfill the term of office, because of illness, withdrawal, or failure to maintain the requirements of the office, the position, including the duty of Student Regent, shall be fulfilled for the remainder of the term by a constitutionally-qualified person elected by the student body in a special election (As mandated by KRS 164.321).
- 2.9.2 Judicial Council shall have discretion over the time line, applications, and campaigning for the special election.
- 2.9.3 In the event that any executive officer other than the President is unable to fulfill the term of office, because of illness, withdrawal, or failure to maintain the requirements of the office, the position shall be fulfilled for a remainder of the term by a constitutionally-qualified person appointed by the President with the approval of a two-thirds (2/3) vote of Congress.

2.10 Impeachment

- 2.10.1 Any executive officer may be removed from office for failure to uphold any provision of this Constitution or for any just cause.
- 2.10.2 For impeachment proceedings to be initiated, a written endorsement of at least twenty percent (20%) of the Congressional membership is required.
- 2.10.3 Impeachment proceedings shall be in a special session of Congress and be presided over by the Chief Justice of the Judicial Council.
- 2.10.4 A final vote in a special session of Congress may not be called until at least fourteen (14) days after proceedings are initiated. The impeachment procedure shall be by a two-thirds (2/3) vote of the full membership of Congress acting as a judicial body.

3 THE LEGISLATIVE BRANCH

- 3.1 The name of the Legislative Branch shall be the Student Congress, referred to as Congress.
- 3.2 To qualify for a Congressional seat candidates must meet the following requirements:
 - 3.2.1 Be enrolled as a full-time or part-time student at Western Kentucky University and not be a member of the faculty or staff.
 - 3.2.2 Be in good standing with the University.
 - 3.2.3 Have at least a 2.25 grade point average.
 - 3.2.4 Residence hall representatives must live in the halls they represent.
 - 3.2.5 Academic Council representatives shall have at least a 2.75 grade point average and meet all other qualifications and requirements set forth by Academic Council.
- 3.3 The Congress shall be composed of the following:
 - 3.3.1 Five (5) non-traditional student representatives.
 - 3.3.2 Five (5) graduate student representatives.
 - 3.3.3 Ten (10) positions each for class representatives from the freshman, sophomore, junior and senior classes.

- 3.3.4 Representatives from each residence hall on campus shall be apportioned in the following manner: one (1) representative for any residence hall with fewer than 200 students, two (2) for any residence hall with between 200-399 students, three (3) for any residence hall with between 400-599 students, and four (4) for any residence hall with 600 or more students.
- 3.3.5 Ten (10) representatives at-large from any standing level.
- 3.3.6 One (1) Academic Council representative from each existing college at the University, appointed by the President, and one alternate for each college, also appointed by the President. The alternate positions are not separate seats in Congress.
- 3.3.7 The Coordinator of Committees and the chairs of each standing and ad hoc committee, appointed by the President.
- 3.3.8 If any position, excluding the appointed positions, is not filled two (2) weeks after the vacancy is announced, the seat will become an at-large position open to any student for the duration of that school year. If one of these at-large seats is vacated before the next election, it reverts back to the original designation.

3.4 Election Procedures

- 3.4.1 All sophomore, junior and senior class representatives shall be elected by their respective constituencies during spring campus-wide elections.
- 3.4.2 All other representatives, excluding appointed positions, shall be elected by their respective constituencies during fall campus-wide elections.
- 3.4.3 All dates mentioned above shall be determined by the Executive Cabinet.

3.5 The Congress shall:

- 3.5.1 Establish policies and programs necessary for the proper functioning of the Student Government Association in compliance with the principles and provisions embodied in this Constitution.
- 3.5.2 Approve the budget with recommendation for final approval by the University administration.
- 3.5.3 Function as a judicial body during impeachment proceedings.
- 3.5.4 Approve Constitutional appointments with the appropriate vote.
- 3.5.5 Establish special committees within Congress as need determines with approval of a majority vote.
- 3.5.6 Have the authority to propose modifications of University policies affecting the activities and welfare of the student body.
- 3.5.7 Have the authority to establish Bylaws and an Election Code.
- 3.5.8 Have the power to override any veto imposed by the President by a two-thirds (2/3) vote.

3.6 Vacancies

- 3.6.1 Vacancies in Congress shall be filled after having one (1) week notice for acceptance of applications to fill the opening. All unfilled residence hall seats converted to at-large positions may also be filled after having one (1) week notice for acceptance of applications.
- 3.6.2 A majority vote of Congress is necessary to fill a vacancy.

3.7 Impeachment

- 3.7.1 Any member of Congress may be removed from office for failure to uphold any provision of this Constitution or for any just cause.
- 3.7.2 For impeachment proceedings to be initiated, a written endorsement of at least twenty percent (20%) of the Congressional membership is required.
- 3.7.3 Impeachment proceedings shall be in a special session of Congress and shall be presided over by the Chief Justice of the Judicial Council.
- 3.7.4 A final vote in a special session of Congress may not be called until at least fourteen (14) days after proceedings are initiated. The impeachment procedure shall be by two-thirds (2/3) vote of the full membership of Congress acting as a judicial body.

4 THE JUDICIAL BRANCH

- 4.1 The judicial authority of the Student Government Association shall be vested in the Judicial Council.
- 4.2 To qualify as a member of the Judicial Council, a person must meet the following requirements:
 - 4.2.1 Have been enrolled at Western Kentucky University for one (1) year immediately preceding appointment.
 - 4.2.2 Be a student during the entire term of office and not be a member of the faculty or staff.
 - 4.2.3 Be in good standing with the University.
 - 4.2.4 Have a minimum grade point average of 2.5 cumulative.
 - 4.2.5 Not be a member of the Congress during the term of office.
- 4.3 Organization and terms of office:
 - 4.3.1 The Judicial Council shall be composed of five (5) Justices appointed by the President with the approval of a two-thirds (2/3) vote of Congress.
 - 4.3.2 The members of the Judicial Council shall be appointed to take office no later than two (2) weeks after the beginning of the fall term. Any vacancies shall be filled within two (2) weeks of the resignation.
 - 4.3.3 The Chief Justice of the Judicial Council shall be appointed by the President of the Student Government Association from the five (5) members with approval of a majority vote of Congress.
 - 4.3.4 All Judicial Council records and minutes shall be posted for two (2) weeks and then filed in the Student Government Association office.
- 4.4 The Chief Justice of the Judicial Council shall:
 - 4.4.1 Be the presiding officer of the Judicial Council.
 - 4.4.2 Have served at least one semester in Congress.
 - 4.4.3 Schedule bi-weekly meetings of the Judicial Council.
 - 4.4.4 Administer the oath of office to the officers and members of Congress. In the absence of the Chief Justice, the President may administer the oath of office.
 - 4.4.5 Preside over all impeachment proceedings for members of the executive and legislative branches.
 - 4.4.6 Call special meetings of the Judicial Council provided twenty-four (24) hours notice is given.

4.5 The Judicial Council shall:

- 4.5.1 At its first meeting select one (1) Justice as clerk to record minutes and post all records in the Student Government Association office.
- 4.5.2 Designate a Justice to report to Congress once a month.
- 4.5.3 Interpret the Constitution and Bylaws of the Student Government Association upon request.
- 4.5.4 Have the power of judicial review over actions of Congress upon request by any duly registered student of this University.
- 4.5.5 Head and adjudicate all cases of appeal concerning elections and qualifications for candidacy.
- 4.5.6 Establish general procedural rules and ethical considerations for the Judicial Council.
- 4.5.7 Enact and review election rules subject to the approval of a majority vote of Congress.
- 4.5.8 Establish such committees as deemed necessary for elections.
- 4.5.9 Review all Constitutional amendments before Congressional vote.
- 4.5.10 Take appropriate action, in accordance with the attendance policy, against those who have been brought up for review.

4.6 Impeachment

- 4.6.1 Any member of the Judicial Council may be removed from office for failure to uphold any provision of this Constitution or for any just cause.
- 4.6.2 For impeachment proceedings to be initiated, a written endorsement of at least twenty percent (20%) of the Congressional membership is required.
- 4.6.3 Impeachment proceedings shall be in a special session of Congress and shall be presided over by a member of Congress appointed by the President with approval of a majority of Congress.
- 4.6.4 A final vote may not be called until at least fourteen (14) days after proceedings are initiated. The impeachment procedure shall be by a two-thirds (2/3) vote of the full membership of Congress acting as a judicial body.

5 CONSTITUTIONAL COMMITTEES

5.1 The Committee on Committees shall:

- 5.1.1 Consist of Congress members only.
- 5.1.2 Consist of the chairs of all standing and ad hoc committees.
- 5.1.3 Meet bi-weekly to examine progress of all the committees within Congress.
- 5.1.4 Work to prevent duplication of committee activities and legislation and direct legislative ideas to the proper committee.
- 5.1.5 Coordinate with the Vice President of Administration in all lobbying efforts of passed legislation.
- 5.1.6 Report monthly to the Executive Cabinet.
- 5.1.7 Have as its chair a student who is not the chair of any other committee. This chair will be appointed by the President with approval by a majority of Congress.

5.2 The Legislative Research Committee shall:

- 5.2.1 Be composed of any students and Congress members wishing to serve.
- 5.2.2 Collect and review all proposed legislation prior to the second reading before Congress.
- 5.2.3 Ensure that all proposed legislation has been properly researched by the author and

require the mandatory presence of at least one author at Legislative Research Committee meetings.

- 5.2.4 Determine the constitutionality of all proposed legislation and decide whether or not any conflict exists with a previous piece of legislation.
- 5.2.5 Perform duties as delegated by Congress or the President.
- 5.2.6 Have a chair appointed by the President with approval of a majority vote of Congress.

5.3 The Student Affairs Committee shall:

- 5.3.1 Be composed of any students and Congress members wishing to serve.
- 5.3.2 Serve the student body on all non-academic affairs and address cultural issues on campus.
- 5.3.3 Perform duties as delegated by Congress or the President.
- 5.3.4 Have a chair appointed by the President with approval of a majority vote of Congress.

5.4 The Academic Affairs Committee shall:

- 5.4.1 Be composed of any students and Congress members wishing to serve.
- 5.4.2 Serve the student body on all academic matters.
- 5.4.3 Forward appropriate legislation to the Academic Council.
- 5.4.4 Perform duties as delegated by Congress or the President.
- 5.4.5 Have a chair appointed by the President with approval of a majority vote of Congress.

5.5 The Public Relations Committee shall:

- 5.5.1 Be composed of any students and Congress members wishing to serve.
- 5.5.2 Provide publicity for all Student Government Association meetings, activities, and programs.
- 5.5.3 Assist all Student Government Association committees concerning public relations.
- 5.5.4 Assist the Vice President of Public Relations in maintaining the communication channels with the media.
- 5.5.5 Perform duties as delegated by Congress or the President.
- 5.5.6 Have a chair appointed by the President with approval of a majority vote of Congress.

5.6 The Campus Improvements Committee shall:

- 5.6.1 Be composed of any students and Congress members wishing to serve.
- 5.6.2 Serve the student body by addressing the physical development of Western Kentucky University.
- 5.6.3 Perform duties as delegated by Congress or the President.
- 5.6.4 Have a chair appointed by the President with approval of a majority vote of Congress.

6 ADVISOR

- 6.1 The advisor of the Student Government Association shall be the Dean of Student Life or a delegated representative.

7 FINANCES

- 7.1 The Student Government Association shall be financed in accordance with the policies and procedures specified by the chief fiscal officer of the University, and in accordance with Kentucky state law.

8 TERM OF OFFICE

- 8.1 All executive officers shall assume office at least two (2) weeks prior to the end of the academic school year and shall serve for one (1) academic year.
 - 8.2 All Congressional representatives shall assume office by the second week in September and serve the remainder of the academic year.
 - 8.3 All Judicial Council Justices shall assume office at least two (2) weeks after the beginning of the fall term and shall serve for one (1) academic year.
- ## 9 AMENDMENTS
- 9.1 This Constitution may be amended by a two-thirds (2/3) vote of the full membership of Congress and subsequent ratification in a referendum by a majority of the student body voting.
 - 9.2 All changes in the Constitution are subject to approval by the administration of the University.

AMENDMENT 1

The Coordinator of Committees shall perform duties as delegated by Congress or the President.

AMENDMENT 2

Academic Council representatives and their alternates shall be selected by the process set out in the Academic Council Charter during spring elections.

AMENDMENT 3

Article 1

- 1.1 Congress shall be composed of the following:
 - 1.1.1 Two (2) graduate student representatives.
 - 1.1.2 Two (2) representatives each from the freshman, sophomore, junior, and senior classes.
 - 1.1.3 Representatives from each residence hall on campus shall be apportioned in the following manner:
 - One (1) representative from any residence hall with fewer than 200 students,
 - Two (2) representatives from any residence hall with between 200-399 students,
 - Three (3) representatives from any residence hall with between 400-599 students, and
 - Four (4) representatives from any residence hall with 600 or more students.
 - 1.1.4 Ten (10) representatives-at-large from any standing level.
 - 1.1.5 Five (5) off campus representatives from any standing level.
 - 1.1.6 Two (2) representatives from each Academic College.
 - 1.1.7 The Coordinator of Committees and the chairs of each standing and ad hoc committee, appointed by the president.
- 1.2 In addition to the requirements found in the Article 3, Section 2 of the Student Government Association Constitution, candidates for Congressional office must meet the following

requirements:

- 1.2.1 Academic College Representatives must have a declared major in the college that they are representing.
- 1.2.2 Academic College Representatives must have at least a 2.75 grade point average overall and 3.0 grade point average in their major course work.

AMENDMENT 4

- 1.1 At the time of their installation, the President and Executive Vice President shall have completed two semesters of active membership in the WKU Student Government Association.
- 1.2 At the time of their installation, the Vice Presidents of Administration, Finance and Public Relations shall have completed one semester of active membership in the WKU Student Government Association.
- 1.3 No exemptions shall be made to the preceding requirements.

AMENDMENT 5

- 1.1 To qualify as a candidate for Vice President of Finance, Vice President of Public Relations and Vice President of Administration, a person must have accumulated a minimum of (15) hours at Western Kentucky University at the time of candidacy, and must be a full-time student at the time of candidacy.

AMENDMENT 6

- 1.1 Congress shall have the authority to establish and provide for the enforcement of a code of ethics for the Student Government Association of Western Kentucky University.
- 1.2 A code of ethics shall be written by a committee composed of representatives from all branches of Student Government within one year of this Amendments ratification.

AMENDMENT 7

- 1.1 This Constitution shall be the supreme law of the Student Government Association of Western Kentucky University and all policies, pronouncements, rulings and enactments of the Association shall be subordinate to it, subject to the U.S. Constitution, the Kentucky State Constitution, federal, state, and local laws, and established University policy.
- 1.2 It is the responsibility of all Congress Members, Executive Officers and Justices to be knowledgeable about the contents of this Constitution.